9.		and proper interpretation of the document are disputable.' [Citation.]" (*Herrera v. Deutsche Bank Nat'l Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.) ***Plaintiff's Request for Judicial Notice*** Plaintiff requests that the Court take judicial notice of various public records including filings with the California Secretary of State (Exs. A, B, C, E, F, G, H, I, and J) and publicly recorded documents (Ex. D). The request for judicial notice is **GRANTED** pursuant to Evidence Code section 452(c) and (h). ***Objection to Declaration of Huawei Ma*** In response to the Declaration of Huawei Ma filed in reply, Specially Appearing Defendant BTinsight filed objections. The Court **SUSTAINS** both objections. **Plaintiff Ma to give notice**.
9.	**30-2025-01457060** **Chadwick Condominium Association, Inc vs. Helmle**	**1. Motion to Disqualify Attorney of Record** Defendant Eric A. Helmle ("Defendant") moves for an order disqualifying attorney Jay J. Brown and Community Legal Advisors, Inc. ("CLA") from further representing plaintiff Chadwick Condominium Association Inc. ("Plaintiff" or "Association") in this action on the ground that Mr. Brown is a central fact witness to this litigation. Defendant argues that disqualification is required under Rule 1.7 of the Model Rules of Professional Conduct of the American Bar Association because Mr. Brown's representation of Plaintiff poses a conflict of interest. However, Rule 1.7 does not apply. Rule 1.7 relates to concurrent conflicts of interest, which exist when the representation of one client will be directly adverse to another client or there is a significant risk that the representation of one or more clients will be materially limited by the lawyer's responsibilities to another client, a former client or a third person or by a personal interest of the lawyer. Here, Plaintiff was never a client of CLA or Mr. Brown and there is no other client with an interest directly adverse to the Association being represented by them. Further, there is no risk that representation of the Association will be materially limited by Mr. Brown's responsibilities to any third person, former client, or his own personal interests. As there is no concurrent conflict of interest in CLA and Mr. Brown's representation of the Association, Defendant's arguments regarding a non-waivable conflict fail. Defendant also moves for disqualification pursuant to Rule 3.7. "Rule 3.7 provides, 'A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless: [¶] (1) the lawyer's testimony relates to an uncontested issue or matter; [¶] (2) the lawyer's testimony relates to the nature and value of legal services rendered in the case; or [¶] (3) the lawyer has obtained informed written consent from the client.' " (*Geringer v. Blue Rider Finance* (2023) 94 Cal.App.5th 813, 821.) " 'In exercising its discretion to disqualify counsel under the advocate-witness rule, a court must consider: (1) " ' "whether counsel's testimony is, in fact, genuinely needed" ' "; (2) "the possibility [opposing] counsel is using the motion to disqualify for purely tactical reasons"; and (3) "the combined effects of the strong interest parties have in representation by counsel of their choice, and in avoiding the duplicate expense and time-consuming effort involved in replacing counsel already familiar with the case." ' " (*Id*. at p. 822.)

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<tr><td></td><td></td><td> Defendant argues that Mr. Brown is a necessary percipient witness because he personally signed the lien against Defendant's property and he is the only individual who can testify as to his authority to record the lien, why the lien was recorded when the Association's status was suspended, internal communications, and how the disputed amounts were calculated. In his Second Amended Cross-Complaint, Defendant alleges that the lien recorded against his property is invalid and void and based on inaccurate accounting practices. Defendant further argues that disqualification is necessary because Mr. Brown and CLA are deeply entangled in Plaintiff's collection practices.
The Court finds that Defendant's arguments that Mr. Brown is a necessary percipient witness due to his involvement in recording the lien and representing Plaintiff in collections efforts are not persuasive. Mr. Brown's authority from Plaintiff to record the lien has no bearing on the validity of the lien or the amendment thereto that was filed while the Association was on a suspended status. Further, any "internal communications" between Plaintiff and Mr. Brown regarding his recording of the lien on Plaintiff's behalf would undoubtedly fall within the scope of the attorney-client relationship and be protected by the attorney-client privilege. (Evid. Code, § 954.)
Moreover, Mr. Brown's testimony is not required in relation to Defendant's allegations that the lien is based on improper accounting and the amount of the lien was miscalculated. Rather, testimony regarding how the Association calculated the amount and the Association's accounting practices would more appropriately be obtained via the deposition of the Association's person(s) most knowledgeable. Thus, the first factor weighs against disqualification.
As to the second factor for consideration, Plaintiff points out that Defendant has known of Mr. Brown's and CLA's representation of the Association over a year before the Motion to Disqualify was filed. However, there is no other evidence aside from this delay to suggest that Defendant is using his Motion for purely tactical reasons. Thus, the Court finds that this factor is neutral.
The last factor, however, also weighs against disqualification. Plaintiff undisputably as a strong interest in representation by counsel of its choice and trial in this matter is currently set for November 23, 2026. This matter has been pending for a year and a half. Requiring Plaintiff to obtain new counsel now would come at significant expense and require duplicative efforts for new counsel to become familiar with the case in preparation for trial. In short, the Court finds that Plaintiff would be highly prejudiced by the granting of this Motion.
In light of all the above, the Motion to Disqualify is DENIED.
Plaintiff to give notice. </td></tr>
<tr><td>11.</td><td> 30-2025-01480831 Gutierrez vs. General Motors LLC </td><td> 1. Motion for Summary Judgment and/or Adjudication
Defendant General Motors, LLC ("Defendant") moves for summary adjudication as to the first cause of action for declaratory relief, third cause of action for violation of the Song-Beverly Consumer Warranty Act express warranty, fourth cause of action for violation of the Song-Beverly Warranty Act implied warranty, fifth cause of action for violation of the Consumer Legal Remedies Act, sixth cause of action for violation of the Business and </td></tr>
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